TCD 001/2020 (1) Gate Mena DMCC (Formerly Houbi OTC DMCC) (2) Huobi Mena FZE v (1) Tabarak Investment Capital Limited (2) Christian Thurner

MAY 30, 2023 TECHNOLOGY AND CONSTRUCTION DIVISION - ORDERS

Claim No: TCD 001/2020

IN THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

TECHNOLOGY AND CONSTRUCTION DIVISION

BETWEEN

(1) GATE MENA DMCC (FORMERLY HOUBI OTC DMCC)

(2) HUOBI MENA FZE

Claimants

and

(1) TABARAK INVESTMENT CAPITAL LIMITED

(2) CHRISTIAN THURNER

Defendants

CONSENT ORDER

UPON the Order with Reasons of Justice Sir Richard Field dated 5 May 2023 (the "Order"), pursuant to which the Claimants have been ordered to pay the sum of AED 1,551,591.99 (the "Amount") into Court by 2 June 2023 failing which they will be debarred from presenting their appeal in CA-002-2023

AND UPON the Claimants' Application No. TCD-001-2020/18 dated 23 May 2023 for an order varying the time for payment of the Amount into Court (the "Application")

AND UPON the parties making a request to the Court for the Application to be determined on an expedited basis pursuant to Rules 23.13 and 23.14 of the Rules of the DIFC Courts (the "RDC")

AND UPON the direction of Justice Sir Richard Field by email from the DIFC Courts' Registry dated 26 May 2023 that the time for payment of the Amount shall be extended until the Court has determined the Application

AND UPON the parties having agreed to the terms of this Consent Order

IT IS HEREBY ORDERED BY CONSENT THAT:

1. The time for the Defendants to file and serve their evidence in answer to the Application shall be abridged to **10am on Monday, 29 May 2023.**

2. The time for the Claimants to file and serve their evidence in reply, if so advised, shall be abridged to **4pm on Wednesday, 31 May 2023.**

3. Further, and in any event, the time for payment of the Amount shall be extended until the Court has determined the Application.

4. Costs shall be costs in the case.

5. The parties shall have liberty to apply.

Issued by:

Delvin Sumo
Assistant Registrar
Date of issue: 30 May 2023
At: 1pm